

CV-26-003831 MALDONADOPADILLA, PAOLA vs COELHO, KELLEY MARIE – Respondent’s Motion for Award of Mandatory Attorney Fees and Costs – GRANTED in a reduced amount of \$7,728 in fees and \$265.34 in costs, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: As the prevailing party on her Special Motion to Strike (Anti-SLAPP), Respondent is entitled to an award of her attorney's fees and costs in connection therewith. (Code Civ. Proc. § 425.16(c)(1).) In that regard, the Court finds that Respondent has submitted sufficient evidence establishing the reasonableness of the time expended based on the declaration of her counsel. The Court must consider the proper rate of attorney fees via lodestar factors outlined in Ketchum v. Moses (2001) 24 Cal.4th 1122. The Court finds that a reasonable rate for an attorney in Stanislaus County finishing their first year is \$300 per hour. Upward or downward adjustments are permitted. In this case, the advocacy was effective, well-presented, and notably efficient. As such, the Court places a 40% upward adjustment on the rate, resulting in a base rate of \$420 per hour. On that basis, and in the absence of any controverting evidence or opposition on this issue, the Court finds that Respondent is entitled to an award of attorney's fees and costs in the amount of \$7,993.34, consisting of \$7,728 in attorney's fees (18.4 hours at \$420/hour), \$156.56 in incurred costs, and \$108.78 in fees in connection with the filing of the instant motion and proposed order. The following are the tentative rulings for cases calendared before Judge Stacy P. Speiller in Department 22:

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